

OREGON STATE HOSPITAL

POLICY

SECTION 7: Patient Rights **POLICY: 7.009**

SUBJECT: Voter Registration and Voting

POINT PERSON: Benefit Coordinators Unit
Director

APPROVED: Sara Walker, MD  **DATE: JULY 25, 2024**
Interim Superintendent

SELECT ONE: ☐ New policy ☐ Minor/technical revision of existing policy
☒ Reaffirmation of existing policy ☐ Major revision of existing policy

I. PURPOSE AND APPLICABILITY

- A. This policy and its attached procedures concern the right of patients to vote, and Oregon State Hospital (OSH)'s procedures and guidelines regarding patient voter registration and voting activities.
- B. This policy applies to all staff and patients.

II. POLICY

- A. Any person admitted to Oregon State Hospital (OSH) and who is a citizen of the United States must be offered the opportunity to register to vote within ten days of admission. Every patient who is registered to vote will receive a ballot after their 18th birthday in accordance with Oregon Revised Statute (ORS) 247.016.
- B. A patient's right to vote may not be restricted unless provisions of ORS 137.281 apply.
- C. Each patient must be offered the opportunity to register and vote, be made aware of the deadlines to vote, and return their ballot and receive their ballot from the county elections office.
- D. OSH will assume the cost of postage for patient voter registration forms to be mailed to county elections offices.
- E. OSH employees must provide assistance to patients completing forms upon their request. Pursuant to ORS 247.208, An employee who assists a patient with their voter registration may not suggest a political preference or party allegiance, discourage a patient from registering to vote, lead any patient to believe that the

choice to not register has any bearing on the availability of services or benefits, or induce any person to register or vote in any particular manner.

- F. The Benefit Coordinator Unit (BCU) may provide assistance to a patient upon request as described on the registration instruction form.
- G. This policy is consistent with the National Voter Registration Act of 1993, and Oregon Administrative Rules 165-005-055 to 165-005-070.
- H. OSH follows all applicable regulations, including federal and state statutes and rules; Oregon Department of Administrative Services (DAS), Shared Services, and Oregon Health Authority (OHA) policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.
- I. Staff who fail to comply with this policy or related policy attachments or protocols may be subject to disciplinary action, up to and including dismissal.

III. DEFINITIONS

- A. "Staff" includes employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at Oregon State Hospital (OSH).

IV. PROCEDURES

Procedures A Patient Voter Registration and Voting

V. RELATED OSH POLICIES AND PROTOCOLS

7.001 Mail and Packages for Patients

7.005 Patient Rights

VI. REFERENCES

52 U.S.C. §20501.

Oregon Administrative Rules §§165-005-0055 – 165-005-0130.

Oregon Revised Statute § 137.281.

Oregon Revised Statute § 247.012(2)(a).

Oregon Revised Statute § 247.016.

Oregon Revised Statute § 247.208.

Oregon Revised Statute § 426.385.